ours p.1 (red) over filed p.1 (blue)

No. 26-4014

IN THE UNITED STATES COURT OF APPEALS
FOR THE TENTH CIRCUIT

PHIL LYMAN,

Plaintiff-Appellant

v.

DEIDRE HENDERSON, in her official capacity as Lt. Governor of the State of Utah,

Defendant-Appellee

Appeal from the United States District Court for the District of Utah
Honorable David Nuffer, District Judge
Case No. 4:25-CV-00069-DN-PK

APPELLANT'S OPENING BRIEF

Kaylan Phillips
PUBLIC INTEREST LEGAL FOUNDATION
107 S. West Street, Ste. 700
Alexandria, VA 22314
(703) 745-5870
kphillips@publicinterestlegal.org

Gond P. Maragani
Management Counsel
4525 West Park Bend Court
Riverton, UT 84096
(385) 237-7960
gond.maragani@gmail.com

ORAL ARGUMENT REQUESTED

ours p.2 (red) over filed p.2 (blue)

TABLE OF CONTENTS

Page

TABLE OF AUTHORITIES iii

STATEMENT OF PRIOR OR RELATED APPEALS 1

JURISDICTIONAL STATEMENT 1

STATEMENT OF THE ISSUES 1

STATEMENT OF THE CASE 2

SUMMARY OF ARGUMENT 4

STANDARD OF REVIEW 5

ARGUMENT 6

I. Candidates Have Standing Under the NVRA 6

II. The NVRA Requires Transparency 8

III. Mr. Lyman Plausibly Alleges Additional Adverse Consequences Caused by the Denial of Public Records 10

A. Tenth Circuit Precedent Does Not Foreclose Mr. Lyman's Downstream Consequences 13

B. Other Courts Found Standing with Identical Pleadings 17

C. Other Circuit Precedents Do Not Foreclose Mr. Lyman's Downstream Consequences 18

IV. Mr. Lyman Is Injured from the Denial of Public Records 20

CONCLUSION 26

STATEMENT IN SUPPORT OF ORAL ARGUMENT 27

TABLE OF AUTHORITIES

Cases: Page(s)

Am. Wild Horse Campaign v. Burgum,
768 F. Supp. 3d 1291 (D. Colo. 2025) 5

Boost v. Ill. State Bd. of Elections,
146 S. Ct. 513 (2026) 4, 6-7, 11-13, 20

Calderón v. City & Cnty. of Denver,
855 F. App'x 438 (10th Cir. 2021) 5

Campaign Legal Ctr. v. Scholz,
49 F.4th 931 (5th Cir. 2022) 18-19

Jacobs v. Salt Lake City Sch. Dist.,
154 F.4th 790 (10th Cir. 2025) 4, 13-14, 22-25

Havens Realty Corp. v. Coleman,
455 U.S. 363 (1982) 22-23

Initiative & Referendum Inst. v. Walker,
450 F.3d 1082 (10th Cir. 2006) 5

Jacobs v. Salt Lake City Sch. Dist.,
154 F.4th 790 (10th Cir. 2025) 5, 10

Judicial Watch, Inc. v. Griswold,
2022 U.S. Dist. LEXIS 153290 (D. Colo. Aug. 25, 2022) 12, 25

Judicial Watch, Inc. v. King,
993 F. Supp. 2d 919 (S.D. Ind. 2012) 25

Laufer v. Looper,
22 F.4th 871 (10th Cir. 2022) 4, 13-16

Lujan v. Defs. Of Wildlife,
504 U.S. 555 (1992) 10

Statutes:

2 U.S.C. § 7 4

28 U.S.C. § 1291 1

28 U.S.C. § 1331 1

3 U.S.C. § 1 4

52 U.S.C. § 20507 (i)(1) 1

United States v. McDowell,
No. 3:19-cr-14-RGJ, 2023 U.S. Dist. LEXIS 161185 (W.D. Ky. Sep. 11, 2023) 19

Voter Reference Found., LLC v. Galvin,
No. 24-cv-12592-DJC, 2026 U.S. Dist. LEXIS 64416 (D. Mass. Mar. 26, 2026) 23-24

Voter Reference Found., LLC v. Torrez,
160 F.4th 1068 (10th Cir. 2025) 2-3, 8-9, 11-12

Winzler v. Toyota Motor Sales U.S.A., Inc.,
681 F.3d 1208 (10th Cir. 2012)) 8

Zivotofsky v. Sec'y of State,
444 F.3d 614 (D.C. Cir. 2006) 21

Statutes and Regulations

2 U.S.C. § 7 7

3 U.S.C. § 1 7

52 U.S.C. § 20507(i)(1) 2, 8-9, 12, 14, 23

Utah Code Ann. § 20A-2-104(2)(a) (LexisNexis 2025) 6-7, 15

Utah Code Ann. § 20A-2-104(4)(d)(i)-(ii) (LexisNexis 2025) 15

~~STATEMENT~~ STATEMENT OF PRIOR OR RELATED APPEALS

~~This is the first appeal in this case and there are no related appeals.~~

STATEMENT OF PRIOR OR RELATED APPEALS

This is the first appeal in this case and there are no related appeals.

JURISDICTIONAL STATEMENT

This is a case about denial of public records under federal law. The district court had subject matter jurisdiction under 28 U.S.C. § 1331. The district court granted the Lt. Governor's motion to dismiss and entered judgment on January 15, 2026. App.113-14.[1] Mr. Lyman timely appealed on February 12, 2026. App.115-16. This Court has jurisdiction under 28 U.S.C. § 1291.

STATEMENT OF THE ISSUES

(I) The district court erred in finding that Mr. Lyman, a candidate for public office and former elected official, lacked Article III standing to redress the denial of public records under the National Voter Registration Act ("NVRA").

(II) The district court erred in finding that Mr. Lyman failed to plausibly allege sufficient downstream consequences arising from the denial of public records.

(III) The district court erred in finding that Article III standing for denial of public records requires a showing beyond the denial of records Congress deemed to be public.

STATEMENT OF THE CASE

Congress decided that "all records" concerning voter list maintenance are public. 52 U.S.C. § 20507(i)(1). Appellant Phil Lyman, a candidate for public office, Utah

[1] References to the Appendix include the specific page number(s) of the Appendix.

SUMMARY OF ARGUMENT

Candidates for public office have standing to request list maintenance records under the NVRA in the same way the Supreme Court ruled candidates have standing in *Bost v. Ill. State Bd. of Elections*, 146 S. Ct. 513, 519 (2026) pertaining to enforcing other federal election laws. The district court erred in demanding to know why Mr. Lyman needed public records and subjecting his reasons to court scrutiny. Congress already decided the question.

The district court misapplied this Court's decision in *Laufer v. Looper*, 22 F.4th 871 (10th Cir. 2022). Even if a plaintiff must plead downstream consequences for the denial of public records, Mr. Lyman's complaint did so on its face. As a candidate and voter, he cannot analyze Utah's voter list maintenance practices for conformity with federal law. He cannot evaluate defendant's enforcement of voter eligibility requirements. Worst of all, he cannot evaluate the performance of government officials in fostering the explicit statutory purposes of the NVRA such as ensuring accurate voter lists.

The district court erroneously applied *Public Citizen* and *FEC v. Akins*. Those cases establish an injury and standing whenever a plaintiff is denied information that a statute requires to be disclosed. *Pub. Citizen v. U.S. Dep't of Justice*, 491 U.S. 440, 449 (1989); *FEC v. Akins*, 524 U.S. 11, 21 (1998). The

NVRA's public disclosure provision mandates disclosure of the records Mr. Lyman requested.

The district court took *Laufer* where it never went. The plaintiff in *Laufer* had no interest or intention in using the information post-litigation. Mr. Lyman is different in so many ways, ways pled in the complaint. The district court should be reversed.

STANDARD OF REVIEW

De novo is the standard of review here. Granting a motion to dismiss for lack of subject matter jurisdiction under Fed. R. Civ. P. 12(b)(1) is subject to this standard. *Santa Fe Alt. for Pub. Health & Safety v. City of Santa Fe*, 993 F.3d 802, 810-11 (10th Cir. 2021). This Court must accept the complaint's well-pled factual allegations as true. *Jacobs v. Salt Lake City Sch. Dist.*, 154 F.4th 790, 798 n. 3 (10th Cir. 2025); *Calderón v. City & Cnty. of Denver*, 855 F. App'x 438, 445 (10th Cir. 2021). "[I]n reviewing the standing question, the court must be careful not to decide the questions on the merits for or against the plaintiff, and must therefore assume that on the merits the plaintiffs would be successful in their claims." *Am. Wild Horse Campaign v. Burgum*, 768 F. Supp. 3d 1291, 1306 (D. Colo. 2025) (quoting *Initiative & Reform Inst. v. Walker*, 450 F.3d 1082, 1093 (10th Cir. 2006)).

ARGUMENT

I. Candidates Have Standing Under the NVRA.

Candidates for public office and voters have standing to request public election records under the NVRA, just as they have standing to enforce other federal election laws under *Bost*, 146 S. Ct. 513.

The day before the district court's decision, the United States Supreme Court issued an opinion on standing. The Supreme Court explained, "Courts sometimes make

20A-2-104(2)(a) (LexisNexis 2025). The district court is correct that Mr. Lyman has been a candidate for public office. But that still does not get him the public records sought. It seems the opposite is true: Mr. Lyman's status as a candidate vests standing. So do his roles as a voter and person entitled to public records.

Bost should control the standing analysis here. The Supreme Court in *Bost* held that a candidate's "interest extends to the integrity of the election—and the democratic process by which they earn or lose the support of the people they seek to represent." *Bost*, 146 S. Ct. at 522-23. As a former candidate and a declared candidate, Mr. Lyman has a personal stake in the integrity of Utah's elections. His stake manifests in his plans to study and analyze Utah's list maintenance activities to ensure Utah is complying with important election integrity statutes. Mr. Lyman is directly harmed by Utah withholding public information that would allow him to carry out his plans.

Though the *Bost* plaintiffs sought to enforce the federal election day statute, 2 U.S.C. § 7 and 3 U.S.C. § 1, the fundamentals on when candidates have standing are the same as here. Indeed, *Bost*'s plaintiffs' claim to Article III injury may be more tenuous than Mr. Lyman's. The Supreme Court in *Bost* allowed candidate standing to rest on a general departure from the law or a possible inaccurate vote tally to satisfy Article III standing. The concurrence allowed monetary expenditures to vest standing. *Bost*, 146 S. Ct. at 523 (Barrett, J., concurring in

judgment.) These may not be the precise harms listed in Mr. Lyman's complaint, but they rhyme.

Mr. Lyman has championed transparency in elections, even making it part of his gubernatorial campaign platform in 2024. *See* Phil Lyman, *Election Policy Vision*, LYMAN FOR UTAH | PHIL LYMAN FOR GOVERNOR, https://web.archive.org/web/20240509161526/https://lymanforutah.com/elections/. (last visited April 7, 2026). Mr. Lyman sought to review election records to see if the law was being followed and the rolls were accurate.[2] Not knowing who is eligible to vote impairs his very ability to be a candidate and ascertain the state of the rolls. His injury is as robust as that suffered by Congressman Bost.

II. The NVRA Requires Transparency.

Voter Reference Found., LLC v. Torrez controls here. It is beyond dispute that the NVRA requires that states "make available for public inspection … all records concerning the implementation of programs and activities conducted for the purpose of ensuring the accuracy and currency of official lists of eligible

[2] In March 2026, Mr. Lyman filed a declaration of candidacy for the United States House of Representatives with the Office of the Lt. Governor. See 2026 Declaration of Candidacy *available at* https://vote.utah.gov/wp-content/uploads/2026/03/CD3-Phil-Lyman.pdf. "Fed. R. Evid. 201 allows courts to take judicial notice of facts 'at any stage of the proceeding' if the facts are 'not subject to reasonable dispute.'" *Winzler v. Toyota Motor Sales U.S.A., Inc.*, 681 F.3d 1208, 1212-1213 (10th Cir. 2012).

STATEMENT IN SUPPORT OF ORAL ARGUMENT

CONCLUSION

Appellant Mr. Lyman requests oral argument because of the important interests at issue, most notably, a state's ability to limit an individual's access to documents made public under federal law. Mr. Lyman believes that oral argument will materially assist this Court in resolving the Article III standing question at issue here.

Mr. Lyman requests this Court reverse the district court's judgment and remand this action.

Respectfully submitted,

/s/ Kaylan Phillips

Kaylan Phillips
Public Interest Legal Foundation
107 S. West Street, Ste 700
Alexandria, VA 22314
(703) 745-5870
kphillips@publicinterestlegal.org

Dated: April 7, 2026

STATEMENT IN SUPPORT OF ORAL ARGUMENT

Appellant Mr. Lyman requests oral argument because of the important interests at issue, most notably, a state's ability to limit an individual's access to documents made public under federal law. Mr. Lyman believes that oral argument will materially assist this Court in resolving the Article III standing question at issue here.

CERTIFICATE OF COMPLIANCE WITH FED. R. APP. P. 32(a)

This brief complies with the type-volume limitations of Federal Rule of Appellate Procedure 32(a)(7)(B), because it contains 5,652, less than the 13,000 words permitted for a party, excluding the parts of the brief exempted by Federal Rule of Appellate Procedure 32(f).

The brief also complies with the typeface requirements of Federal Rule of Appellate Procedure 32(a)(5), and the type style requirements of Federal Rule of Appellate Procedure 32(a)(6), because it has been prepared in a proportionally spaced typeface using Microsoft Word in Times New Roman 14-point type.

Dated: April 7, 2026

/s/ Kaylan Phillips
Kaylan Phillips

CERTIFICATE OF DIGITAL SUBMISSION

I hereby certify that with respect to the foregoing:

(1) all required privacy redactions have been made per Fed. R. App. P. 25(a)(5) and 10th Cir. R. 25.5;

(2) that this document is a native PDF document;

(3) that the ECF submission is an exact copy of those documents;

(4) the digital submission has been scanned for viruses with the most recent version of a commercial virus scanning program, Bitdefender Endpoint Security Tools Antimalware, last updated on April 6, 2026 and

(5) according to the program, this document is free of viruses.

/s/ Kaylan Phillips
Kaylan Phillips
April 7, 2026

CERTIFICATE OF SERVICE

I hereby certify that on April 7, 2026, pursuant to Fed. R. App. P. 25 and 10th Cir. R. 25.4, I electronically filed the foregoing using the Court's CM/ECF system, which in turn caused electronic notifications of such filing to be sent to all counsel of record.

/s/ Kaylan Phillips
Kaylan Phillips
April 7, 2026

INDEX OF ATTACHMENTS

INDEX OF ATTACHMENTS

Memorandum and Order (Jan. 15, 2026) ..... Attachment 1

Memorandum Decision and Order (Jan. 15, 2026) ..... Attachment 1

Judgement of the District Court (Jan. 15, 2026) ..... Attachment 2

Judgment of the District Court (Jan. 15, 2026) ..... Attachment 2